

**Court No. - 40**

**Case :-** WRIT - C No. - 9316 of 2023

**Petitioner :-** Raj Bahadur Yadav

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Subhash Chandra Mishra

**Counsel for Respondent :-** C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

**Hon'ble Mahesh Chandra Tripathi, J.**

**Hon'ble Manjive Shukla, J.**

Heard learned counsel for the petitioner; Ms. Kriti Chaurasia, learned State Law Officer and Shri Narendra Kumar Tiwari, learned counsel for respondent nos.3 and 4.

Present writ petition has been preferred for a direction to respondent nos.2 to 4 to cancel the Electrical Connection Consumer No.HD32582043035 and Account No.751701323768 and also cancel the electricity bill of Rs.2,09,311/- dated 23.3.2022 and for a further direction to respondents not to take any coercive method against the petitioner in connection with recovery proceedings.

At the very outset, learned counsel for respondents has raised preliminary objection regarding the maintainability of the writ petition on the ground that for the reliefs claimed in the writ petition the petitioner has got alternative efficacious remedy to represent under Clause 6.5 of the U.P. Electricity Supply Code, 2005. He further submits that in case any such representation/objection is moved by the petitioner before the concerned Executive Engineer, then definitely the grievance of the petitioner will be addressed in accordance with law.

Considering the facts and circumstances of the case, without expressing any opinion on the merits of the issue and with the consent, the writ petition stands **disposed of** with observation that in case the petitioner moves an application as per the aforesaid provisions before the concerned Executive Engineer within one week, we hope and trust that the grievance of the petitioner would be redressed strictly in accordance with law expeditiously.

**Order Date :-** 23.3.2023

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